

Simtec Consult Ltd - Data Processing Agreement And Service Schedule

Version: 1.0

Status: Approved

Owner: Director

Prepared: 2026-08-03

Next review due: 2026-09-03

> This is a reusable contract template, not legal advice. Complete every applicable field and check it against the main agreement, the actual service, current UK data protection law, and any customer terms before signature.

Parties And Agreement

This Data Processing Agreement is between:

1. **Customer legal name, company number and address to be completed** (the **Customer**); and
2. **Simtec Consult Ltd, company number and registered address to be completed** (Simtec).

It forms part of **the agreement, order, statement of work, or effective date to be completed** (the **Main Agreement**).

For the processing described in Schedule 1, the Customer is the controller and Simtec is the processor unless Schedule 1 expressly records a different lawful role. Terms such as controller, processor, personal data, processing, personal data breach and data subject have the meanings given by applicable UK data protection law.

If this agreement conflicts with the Main Agreement on the protection of personal data, **order of precedence to be confirmed**.

1. Documented Instructions

Simtec will process personal data only:

- to provide the services described in the Main Agreement and Schedule 1;
- on the Customer's documented instructions; or
- where UK law requires the processing, in which case Simtec will inform the Customer before processing unless the law prohibits this.

The Customer is responsible for ensuring its instructions and disclosure of personal data to Simtec comply with applicable law. Simtec will tell the Customer if, in its reasonable opinion, an instruction infringes applicable data protection law and may pause the affected processing while the parties resolve the concern.

The parties may agree different or additional application-data requirements during project discovery, contracting, or controlled project change. Simtec will assess feasibility, security, supplier limitations, delivery impact, and cost before accepting them. They apply only when recorded in the Main Agreement, statement of work, this agreement and its schedules, or an agreed change record.

2. Confidentiality And Personnel

Simtec will ensure that people authorised to process the personal data:

- are subject to an appropriate duty of confidence;
- receive access only where needed for the services; and
- are informed of the security and data handling responsibilities relevant to their work.

3. Security

Taking account of the nature of the processing, available technology, implementation cost, and risks to people, Simtec will maintain appropriate technical and organisational measures. The measures applying to the service must be completed in Schedule 2.

Simtec will not materially reduce the overall security of the agreed service during the processing without informing the Customer where the change materially affects the Customer's risk or contractual requirements.

4. Subprocessors

The Customer gives **specific / general written authorisation - select one** for Simtec to use the subprocessors listed in Schedule 3.

Where general authorisation applies, Simtec will give the Customer **notice period and notification method to be completed** before adding or replacing a subprocessor, so the Customer has a reasonable opportunity to object on data protection grounds.

Simtec will:

- carry out proportionate checks before appointing a subprocessor;
- put written data protection terms in place that provide an equivalent level of protection for the relevant personal data;
- remain responsible to the Customer for the subprocessor's performance of those obligations; and
- make current subprocessor information available by **method to be completed**.

If the parties cannot resolve a reasonable objection, the available mitigation, service change, or termination rights are **to be completed or governed by the Main Agreement**.

5. International Transfers

Unless Schedule 1 records a different location agreed by the parties, Simtec will host primary customer application data, including database records and application files, in UK or EEA regions. This does not prevent approved suppliers from processing account, support, security, traffic, or service metadata elsewhere where a lawful transfer mechanism and appropriate safeguards apply.

Simtec will not initiate a restricted transfer of the personal data except:

- on the Customer's documented instructions; and
- where a lawful UK transfer mechanism applies.

Schedule 3 must identify known processing locations and the applicable adequacy coverage, UK International Data Transfer Agreement, UK Addendum, binding corporate rules, exception, or other lawful mechanism. Where required, the responsible party will complete and retain a proportionate transfer risk assessment or data protection test.

The parties' responsibilities for transfer documentation and supplementary measures are **to be completed**.

6. Data Subject Requests

Taking account of the nature of the processing, Simtec will provide reasonable assistance for the Customer to respond to requests from people exercising their data protection rights.

Unless legally authorised or required to respond directly, Simtec will refer a request relating to Customer-controlled personal data to the Customer without undue delay. Customer request contact: **to be completed**.

Any fees permitted for exceptional or additional assistance must be agreed under the Main Agreement before work begins where practicable.

7. Personal Data Breaches

Simtec will notify the Customer without undue delay after becoming aware of a personal data breach affecting the personal data processed under this agreement.

Initial notification target, if contractually agreed: **to be completed; do not promise a fixed period unless operationally achievable.**

As information becomes available, Simtec will provide reasonable details of:

- the nature of the breach;
- the affected systems, data, and people or approximate numbers where known;
- likely consequences;
- containment, investigation, and remediation measures; and
- the Simtec contact for follow-up.

Simtec will provide reasonable cooperation to support the Customer's assessment and legally required notifications. Notification by Simtec is not an admission of fault or liability.

Customer security contact: **to be completed.**

Simtec security contact: **Director to confirm a monitored route.**

8. Compliance Assistance

Taking account of the nature of processing and information available to Simtec, Simtec will provide reasonable assistance with:

- security-of-processing assessments;
- personal data breach notifications and communications;
- data protection impact assessments; and
- prior consultation with the ICO where required.

The scope, timing, confidentiality, and permitted fees for substantial additional assistance are governed by **the Main Agreement or terms to be completed.**

9. Return And Deletion

At the end of the relevant services, Simtec will, at the Customer's choice and subject to the completed Schedule 1:

- return the personal data in an agreed reasonably available format; and/or
- delete or anonymise the personal data and existing copies.

This does not require deletion where UK law requires retention. Data may remain in protected backups until expiry under the agreed backup-retention cycle, provided it is not restored for ordinary use and remains subject to this agreement.

The Customer must request any return before **period to be completed**. Active-system deletion period, backup expiry, deletion method, and any exceptions must be specified in Schedule 1.

10. Information, Audits And Inspections

Simtec will make available information reasonably necessary to demonstrate compliance with the processor obligations applying to the services. Evidence may include current certifications, approved policy summaries, supplier information, questionnaire responses, or other proportionate materials.

Audit arrangements, including notice, frequency, confidentiality, non-disruption, use of independent auditors, security restrictions, allocation of costs, and treatment of other customers' information, are **to be completed or governed by the Main Agreement**.

Simtec will inform the Customer if it believes an audit instruction infringes applicable data protection law.

11. Records And Regulatory Cooperation

Simtec will maintain records required of it as a processor and cooperate with the ICO where legally required. Sensitive security, personnel, customer, or incident evidence may be supplied in a controlled manner or through an independent assurance mechanism rather than by unrestricted disclosure.

12. Liability, Term And General Terms

This agreement continues while Simtec processes the personal data for the Customer. Liability, indemnities, governing law, jurisdiction, termination, and notices are governed by **the Main Agreement or replacement wording to be legally reviewed**.

Signatures

For the Customer	For Simtec Consult Ltd
Name:	Name:
Title:	Title: Director
Signature:	Signature:
Date:	Date:

Schedule 1 - Processing Details

Complete this schedule separately for each materially different service or project.

Use this schedule to record any negotiated customer requirements that differ from Simtec's standard operating approach. Requirements that affect architecture, hosting location, suppliers, backup, recovery, testing, access, retention, deletion, incident notification, or AI use should be agreed before the affected design or delivery decision where practicable.

Item	Agreed detail
Service / project	To be completed
Subject matter	To be completed
Nature and purpose	To be completed
Processing activities	Collection / access / hosting / storage / development / support / migration / deletion - select and describe
Duration	To be completed
Categories of people	To be completed
Categories of personal data	To be completed
Special category or criminal-offence data	None unless expressly described and approved here
Customer instructions	Main Agreement, statement of work, support requests, and other documented instructions to be identified
Hosting and storage requirements	Primary customer application data hosted in UK or EEA regions unless a different location is agreed here. Add any provider, geographic, architecture, or endpoint restrictions.
Permitted access locations	To be completed, including any remote support access outside the UK

Item	Agreed detail
Local device processing	Prohibited / permitted subject to confirmed controls - select and describe
Production data in development or test	Prohibited unless expressly approved / alternative rule to be completed
Active-service retention	To be completed
Logs, tickets, communications, and repository retention	To be completed
Return format and request period	To be completed
Primary-system deletion after termination	To be completed
Backup expiry or deletion	To be completed
Legal or contractual retention exceptions	To be completed
Customer rights-request contact	To be completed
Customer incident contact	To be completed
Simtec incident contact	Director to confirm monitored route
Customer-specific AI restriction	To be completed
Other negotiated customer requirements	To be completed, including any delivery, cost, or supplier dependencies

Schedule 2 - Technical And Organisational Measures

Select, verify, and describe the measures that actually apply. Delete generic text that is not true for the service.

Governance And Personnel

- Director-owned security and data protection policies.
- Whole-organisation Cyber Essentials certification valid to 17 June 2027.
- Confidentiality obligations for authorised personnel.
- Security responsibilities and incident reporting requirements.
- Supplier, risk, access, and policy review processes.

Additional or service-specific measures: **to be completed**.

Identity And Access

- Named accounts and access based on role, project, and business need.
- Director approval and recording of administrator access.
- MFA for cloud users and administrators where available.
- Separate use of administrator credentials for administrative tasks.
- Removal or revocation of accounts, sessions, keys, tokens, and access when no longer needed.

Service-specific access model and review cadence: **to be completed**.

Data Protection And Encryption

- Approved systems and data-minimisation requirements.
- Secure transport and at-rest protection as verified for the selected service.
- Secrets kept out of source control and held in approved secret-management locations.

- Local copies avoided and deleted when no longer needed.

Encryption protocols, provider controls, key ownership, device encryption, backup encryption, and exceptions: **to be completed.**

Device And Endpoint Security

- Supported operating systems and software.
- High-risk or critical security updates within 14 days.
- Screen locks, device firewalls, malware protection or trusted application-source controls.
- Separate local administrator use where needed.

Full-disk encryption, remote wipe, device verification, disposal, and local customer-data rule: **Director to confirm.**

Software Development And Change

- Project-limited source-control and deployment access.
- Protected secrets and separation between environments where practical.
- Supported dependencies and risk-based remediation.
- Proportionate code, configuration, permission, and sensitive-workflow review.
- Recorded material and higher-risk changes.

Required peer review, automated scanning, security testing, production-data restrictions, remediation targets, and release controls: **to be completed.**

Hosting And Network Security

- Approved hosting and cloud services.
- Restricted firewall rules and administrator access.
- Key-based SSH where used.
- Database access restricted where exposed.
- Supported server software and security updates.

Architecture, tenancy, ports, administrative path, monitoring, logging, and service-specific controls: **to be completed in a controlled attachment if sensitive.**

Backup, Availability And Recovery

- Protected backup or equivalent recovery arrangements where verified for the service.
- Annual and change-triggered review or testing for material recovery processes.
- Incident recovery process, including clean restore and credential rotation where appropriate.

Backup frequency, retention, separation, encryption, RPO, RTO, restore-test date or cadence, and exclusions: **to be completed.**

Incident Management

- Prompt internal reporting and Director-led triage.
- Containment, investigation, recovery, notification assessment, and lessons learned.
- Incident and breach records maintained outside the public policy repository.

Customer notification target, contacts, update cadence, and report expectations: **to be completed.**

Schedule 3 - Approved Subprocessors And Transfers

Copy only verified, applicable entries from customer - subprocessor - list .md.

Subprocessor legal entity	Service and purpose	Personal data	Processing locations	Transfer mechanism	Customer authorisation date
To be completed	To be completed	To be completed	To be completed	To be completed	To be completed

Customer Completion And Review Record

Date	Reviewer	Review	Outcome
To be completed	Director	Operational accuracy and consistency with internal policy	Pending
To be completed	Legal reviewer or recorded Director decision	UK data protection and contractual suitability	Pending
To be completed	Customer / contract owner	Service-specific schedule and contacts	Pending